

Employee Relations Glossary

ER	Employee Relations – everything to do with discipline and unions
LRA	Labour Relations Act 66 of 1995
Schedule 8	Code of Good Practice on Dismissal A set of guidelines that employers must follow when dismissing employees for reasons related to conduct, capacity, or performance.
BCEA	Basic Conditions of Employment Act
SD9	Sectoral Determination 9: Wholesale and Retail The Sectoral Determination contains conditions of employment for workers in the Wholesale and Retail Sector such as hours of work, leave, particulars of employment and termination of employment.
SD5	Sectoral Determination 5: Learnerships It contains regulations that governs the working conditions, working hours, rest periods, and payment details for learnership workers:
OHSA	Occupational Health and Safety Act
COIDA	Compensation of Occupational Injuries and Diseases Act
EEA	Employment Equity Act
Code of Ethical Conduct	Sets out standards of ethical behaviour for TFG employees
Disciplinary Policy	Sets out standard of desired and acceptable behaviour for TFG employees, the disciplinary processes for misconduct and recommended sanctions for various types of misconduct
Misconduct	Intentionally or negligently breaking rules/disregarding policies
Incapacity	Inability to perform job
Poor performance incapacity	Lack of skill/knowledge to perform job
Ill health incapacity	Too ill or injured to be able to perform job
Discipline	Corrective measures taken for misconduct
Procedural fairness	Process followed when taking disciplinary action
Substantive fairness	Reason for taking disciplinary action
Progressive discipline	Increasingly severe corrective action (verbal, written, final written warning, dismissal)
Sanction	Warning or dismissal
Reprimand	Informal disciplinary action for minor misconduct
Warning	Part of progressive discipline short of dismissal

VW, WW, FWW	Verbal, Written and Final Written Warning
CFWW	Comprehensive Final Written Warning
PIP	Performance Improvement Plan, process when dealing with poor performance
Disciplinary discussion	Process to be followed when issuing a warning
Enquiry	Process to be followed for serious misconduct that may result in dismissal
Dismissal	Termination of employment following disciplinary process
Initiator	Presents the Company's/business case against employee at enquiry
Chairperson	Directs and determines outcome of enquiry
Witness	Person who gives verbal evidence at an enquiry
Representative	Internal person who assists employee during a disciplinary process
Grievance	Process for employee to follow when formally raising a complaint about something work-related
Common Law Duties	Automatic responsibilities of employee and employer when employment relationship begins
Suspension	Removal of employee from workplace as a precautionary measure
Sexual Harassment	Unwanted conduct of a sexual nature
Harassment	Conduct that undermines the dignity of a person, leads to a hostile work environment
Charges	Allegations of misconduct against employee
Evidence	Used to prove employee's guilt
CCMA	Commission for Conciliation, Mediation and Arbitration
BC	Bargaining Council
Commissioner	Person appointed to facilitate conciliations and arbitrations within an external dispute resolution forum
External dispute resolution forum	Official external forum responsible for dealing with employment disputes
Union	Organisation representing and promoting employee interests in the workplace
Shop steward	Employee elected by employees to represent them
Union official	External representative of a union
NTA	Notice to attend a disciplinary enquiry